IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF TEXAS
SAN ANTONIO DIVISION

ELI LILLY AND COMPANY,

Plaintiff,

v.

ASTRA LLC d/b/a ASTRA PEPTIDES; and ASTRA PEPTIDES, an entity or person doing business under that assumed or common name whose true legal identity is presently unknown,

Defendants.

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Case No.: 5:26-cv-05147-FB
JURY TRIAL DEMANDED

FIRST AMENDED COMPLAINT

1. Defendants Astra LLC, doing business as Astra Peptides ("Astra LLC") and Astra Peptides, an entity or person doing business under that assumed or common name whose true legal identity is presently unknown ("Astra Peptides" and, together with Astra LLC, "Astra"), claim to be an online seller of purportedly "research use only" products. In reality, Astra is selling illegal drugs to consumers and profiting from it. Astra markets and sells weight-management products it claims contain retatrutide, an investigational molecule developed by Plaintiff Eli Lilly and Company ("Lilly") for use as a prescription medicine. Neither the U.S. Food and Drug Administration ("FDA") nor any other regulatory agency in the world has approved a medicine containing retatrutide for any use. And despite the pretext Astra uses, the substance that it sells is not a chemical intended for research use but instead a drug it intends and sells for human use—making Astra's product an illegal drug. Retatrutide cannot legally be sold for human use to anyone, anywhere, for any reason. Lilly brings this action to stop Astra's conduct—conduct that harms both consumers and Lilly.

2. The American prescription drug market is built on a fundamental premise: before any drug can be sold to patients, FDA must find it to be safe and effective through rigorous clinical testing and review of scientific evidence. Congress and the states developed this system of pre-market review over time after Americans were repeatedly and regularly harmed by unregulated, dangerous products sold as medicine. In fact, the Food, Drug & Cosmetic Act's requirement of rigorous clinical data supporting both safety and effectiveness *before* a drug is marketed to Americans traces directly to severe cases of patient death and harm from unapproved drugs sold by unscrupulous sellers.[1] The principle of evidence-based review for safety and effectiveness is essential to protecting Americans from unscrupulous sellers peddling unsafe and untested drugs. Proving that safety and effectiveness for a new molecule like retatrutide requires lengthy clinical trials under strict ethics rules, billions of dollars in investments in research and manufacturing capacity, and—even then—fails to produce an approved medicine more than 90% of the time.

3. Even after the laws passed, unapproved drugs illegally sold as medicine have caused hundreds of deaths.[2] Astra is engaged in the same type of conduct. In selling its illegal drugs under a false pretext, Astra mocks the safety guarantees imposed by Congress and the states, flouts drug-regulatory standards, and exploits the clinical trial data from investigational medicines that Lilly and others have developed.

4. Lilly's Phase 3 clinical trials have produced powerful data, including a recent trial that showed retatrutide helped adults living with obesity lose an average of approximately 70 pounds over 80 weeks at the highest dose. But retatrutide is still an investigational molecule, and Lilly has not finished its clinical trials or submitted a final data package to FDA to establish the safety and effectiveness of any retatrutide medicine—nor has any other manufacturer—and

[1] *E.g.*, FDA, Promoting Safe & Effective Drugs for 100 Years, *FDA Consumer* (Jan.-Feb. 2006) (detailing the sulfanilamide and thalidomide scandals that led to the 1938 Act and 1962 Amendments, respectively), *available at* https://www.fda.gov/media/110482/download?attachment.

[2] *E.g.*, FDA, Unapproved Drugs and Patient Harm (June 2, 2021), https://www.fda.gov/drugs/enforcement-activities-fda/unapproved-drugs-and-patient-harm.

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pounds over 80 weeks at the highest dose.[3] But retatrutide is still an investigational molecule, and Lilly has not finished its clinical trials or submitted a final data package to FDA to establish the safety and effectiveness of any retatrutide medicine—nor has any other manufacturer—and FDA has not approved it. So, right now, there is no approved product containing retatrutide that has been proven safe and effective or authorized for human use. Accordingly, retatrutide is legally available only under strict protocols to select patients as an investigational new drug. No other lawful access to any retatrutide product for human use exists. The law is therefore clear and categorical: no drug containing retatrutide may be sold to consumers. Period.

5. The consequences of Astra's conduct are real and dangerous for consumers. Research use only products are, definitionally, not for human use. Consumers who purchase these illegal products are injecting themselves with substances of unknown composition, purity, potency, and sterility. These formulations and manufacturing quality processes have never been subject to FDA testing or review, clinical studies, or efficacy research. Illegal drugs made outside of a regulated, inspected supply chain are more likely to contain bacteria and other harmful contaminants and impurities. Consumers have no way to know whether these products are safe or effective.

6. Astra's illegal scheme also directly harms Lilly. In addition to its research and developing retatrutide, Lilly has developed several FDA-approved obesity management medicines. By relying on Lilly's studies and presenting Astra's purported retatrutide products as superior to approved medicines treating obesity, Astra free rides on Lilly's innovation and research and development while bearing none of the costs, regulatory burdens, or responsibility for patient safety during that process. By selling illegal retatrutide products to people seeking medication for their obesity-related conditions, Astra's illegal sales are costing Lilly sales of its FDA-approved obesity management medicines.

7. The harm to consumers and Lilly does not end there. Astra is also poisoning the well for the future of retatrutide medicines. Because no retatrutide medicine is yet commercially available from any lawful source, consumers' first experiences with products purporting to be retatrutide are occurring exclusively through black-market sellers like Astra.

[3] Lilly | Investors, *Lilly's triple agonist, retatrutide, successful in two additional Phase 3 obesity trials, delivering significant improvements in weight and A1C* (July 23, 2026), https://investor.lilly.com/news-releases/news-release-details/lillys-triple-agonist-retatrutide-successful-two-additional.

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8. Astra's conduct is not an isolated incident. In just the last several months, FDA has issued at least 16 warning letters to sellers of illegal retatrutide products. Astra is part of a dangerous and growing black market that threatens public health—and violates the law of numerous states.

9. Lilly asks this Court to put a stop to it. Lilly seeks a permanent injunction barring Astra from marketing, selling, or distributing any product containing or purporting to contain retatrutide; damages and disgorgement of Astra's profits; and an award of attorneys' fees and costs. American consumers deserve better than the risky and unlawful products that Astra is selling them.

THE PARTIES

10. Plaintiff Eli Lilly and Company is a corporation organized and existing under the laws of Indiana with its principal place of business in Indiana.

11. Defendant Astra Peptides is an entity or person doing business under the assumed or common name "Astra Peptides" whose true legal identity is presently unknown. As of the date of this filing, astrapeptides.com lists 11530 Menchaca Road, Austin, Texas 78748 as its address. Lilly has been unable to ascertain the true identity of this defendant despite reasonable efforts. Astra Peptides markets, distributes, and sells through its website astrapeptides.com peptides and products that it claims contain retatrutide. Lilly will amend its

Complaint to state the true name and capacity of this defendant when it is ascertained. Astra

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12. Defendant Astra LLC is a Texas limited liability company with its principal place of business at 506 Mesa Valley San Antonio, Texas 78258. Upon information and belief, its sole member and registered agent is Dmitry Kuznetsov, with an address of 506 Mesa Valley, San Antonio, TX 78258. Since filing the Original Complaint, the "Contact Us" page of the astrapeptides.com website that listed its address as 13376 Research Boulevard, Suite 124, Austin, Texas 78750 has been removed. As of the date of filing this Complaint, the astrapeptides.com website provides an address for Astra of 11530 Menchaca Road, Austin, Texas 78748.

13. Astra advertises its products to consumers through social media platforms, including TikTok. Astra sells, markets, and distributes products it claims contain retatrutide from its location in Austin, Texas to all U.S. addresses, with delivery typically taking 3–5 business days.[5]

JURISDICTION AND VENUE

14. This Court has subject matter jurisdiction under 28 U.S.C. § 1332 because this is a civil action between citizens of different states and the amount in controversy exceeds $75,000, exclusive of interest and costs.

15. Astra LLC is subject to personal jurisdiction in Texas because it is organized under Texas law and its principal place of business is located in Texas.

16. Astra Peptides is subject to personal jurisdiction in Texas because, on information and belief, its principal place of business is in Texas, and it has significant contacts with Texas, purposefully availed itself of the privilege of conducting business in Texas, including by owning and operating an e-commerce website at astrapeptides.com and astrapeptides.store and shipping products to customers in Texas.[6] Astra Peptides' terms and conditions state that "[d]elivery typically takes 3-5 business days" and "[w]e ship from right here in the USA to all US addresses").[7]

[4] See Astra Peptides, Terms & Conditions, https://astrapeptides.com/ (last visited Aug. 25, 2026).

[5] *See* Astra Peptides, Contact Us, https://astrapeptides.com/ (last visited Aug. 6, 2026).

[6] *See* Astra Peptides, Shipping, https://astrapeptides.store/shipping/ (last visited Aug. 25, 2026).

[7] See Astra Peptides, Home, https://astrapeptides.com/ (last visited Aug. 6, 2026) (stating "[d]elivery typically takes 3-5 business days" and "[w]e ship from right here in the USA to all US addresses").

nationwide from its Texas-based operations at 11530 Menchaca Road, Austin, Texas 78748;

and promoted, sold, and distributed the purported retatrutide products at issue in this

Complaint into Texas and to Texas customers.

17. Venue is proper in this District pursuant to 28 U.S.C. § 1391 because a substantial part of the events or omissions giving rise to Lilly's claims occurred in this District.

GENERAL ALLEGATIONS

I. FDA'S RIGOROUS AND THOROUGH REVIEW OF NEW DRUGS AND MEDICINES PROTECTS AMERICAN PATIENTS

18. In FDA's words, "American consumers benefit from having access to the safest and most advanced pharmaceutical system in the world." The American system for reviewing new medicines, with its rigorous and thorough pre-market evaluation of scientific data, is crucial for public health.

19. Before a new drug can be brought to market, the drug must be clinically tested through a rigorous series of studies designed to determine whether the medication is safe and effective for use under specific conditions and for specific indicated purposes. As an initial step, a drug sponsor must obtain FDA authorization to administer an investigational drug to human subjects through an Investigational New Drug ("IND") application.[9] The IND process requires sponsors to submit detailed preclinical data, manufacturing information, and clinical protocols for FDA review. The IND does not authorize commercial sale of the drug. *Any* distribution to or use of the investigational drug on humans outside of an effective IND protocol is unlawful.

20. After proceeding through the years-long clinical trial process, sponsors must provide FDA with a New Drug Application ("NDA") or Biologics License Application ("BLA") containing sufficient evidence proving the product is safe and effective for its intended indications, among other things. That evidence is subjected to a structured, multi-disciplinary review involving physicians, statisticians, chemists, pharmacologists, and other scientists. Approval is granted only if this review establishes that a drug's health benefits outweigh its known risks in treating particular conditions.

21. Additionally, obtaining and maintaining FDA approval requires strict compliance with current Good Manufacturing Practices ("cGMP") regulations across the entire supply chain, from raw materials to finished medical products. Manufacturers must audit suppliers, control

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[9] *See* 21 U.S.C. § 355(i); 21 C.F.R. § 312.

review involving physicians, statisticians, chemists, pharmacologists, and other scientists material specifications, and validate processes to ensure the safety, identity, and strength of the product.[10] Approval is granted only if this review establishes that a drug's health benefits outweigh its known risks in treating particular conditions.

22. FDA approval is notoriously hard to achieve in the United States. More than 90% of candidates fail. It is also an enormously costly and time-intensive process. On average, it takes ten to fifteen years and costs $2.6 billion to develop one new FDA-approved medicine.

21. Additionally, obtaining and maintaining FDA approval requires strict compliance with current Good Manufacturing Practices ("cGMP") regulations across the entire supply chain, from raw materials to finished medical products. Manufacturers must

23. If a prescription drug or biologic is approved, FDA's vigorous oversight continues audit suppliers, control material specifications, and validate processes to ensure the safety, after its approval. Among other things, sponsors must report all promotional materials to FDA; identity, and strength of the product.
track and trace each finished product and report any deviations; and promptly report adverse

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24. This continuous oversight allows America to represent what FDA has called "the takes ten to fifteen years and costs $2.6 billion to develop one new FDA-approved medicine. gold standard" for pharmaceutical regulation.

23. If a prescription drug or biologic is approved, FDA's vigorous oversight

25. In addition to federal regulations, states play an important role in regulating the sale continues after its approval. Among other things, sponsors must report all promotional of drugs and biologics within their borders. Most states prohibit the sale of prescription drugs that materials to FDA; track and trace each finished product and report any deviations; and lack FDA or state regulatory approval and further prohibit the sale of even approved drugs that are promptly report adverse events.

misbranded (e.g., false, misleading, or inaccurate information on drug labels) or adulterated (e.g., 24. This continuous oversight allows America to represent what FDA has called "the manufactured under unsanitary conditions). gold standard" for pharmaceutical regulation.

II. LILLY DEVELOPS FDA-APPROVED OBESITY MANAGEMENT MEDICINES AND INVESTIGATIONAL TREATMENTS

CAUSES OF ACTION

FIRST CAUSE OF ACTION

Unfair Competition

in Violation of the Alaska Unfair Trade Practices and Consumer Protection Act

Alaska Stat. §§ 45.50.471 et seq.

26. Lilly is an international medicine company and pharmaceutical manufacturer. Throughout its 150-year existence, Lilly has pioneered countless life-changing discoveries. Today, Lilly's medicines help more than 70 million patients across the globe.

25. Lilly incorporates by reference the allegations above as if fully set forth herein.

26. The Alaska Unfair Trade Practices and Consumer Protection Act, Alaska Stat. §§ 45.50.471 et seq., prohibits unfair methods of competition and unfair or deceptive acts or practices in the conduct of trade or commerce.

[10] FDA, *Facts About the Current Good Manufacturing Practice (CGMP)* (Nov. 21, 2025), https://www.fda.gov/drugs/pharmaceutical-quality-resources/facts-about-current-good-manufacturing-practice-cgmp.

132. R.C.W. § 69.04.570 prohibits the sale, delivery, or offering for sale of any "new drug" unless an approved application is in effect for such drug under federal law.

133. Astra's purported retatrutide products are "new drugs" within the meaning of Washington law. Retatrutide has not been approved by FDA, is not yet generally recognized as safe and effective, and has not been used to a material extent or for a material time.

134. Astra has violated R.C.W. § 69.04.570 by distributing, selling, and offering for sale unapproved retatrutide products to consumers in Washington and throughout the United States.

135. Astra's sale of unapproved new drugs in violation of R.C.W. § 69.04.570 constitutes an unfair or deceptive act or practice in violation of the Washington Consumer Protection Act, R.C.W. § 19.86.020.

136. Lilly has been injured by Astra's unlawful conduct, including through lost sales, damage to goodwill, harm to Lilly's competitive position, and diversion of consumers to unapproved and potentially unsafe products.

137. Lilly has standing to bring this action and is entitled to all available remedies under R.C.W. § 19.86.090, including injunctive relief, damages, and reasonable attorneys' fees and costs.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff Lilly prays that this Court enter judgment in Lilly's favor on Lilly's claims and award Lilly relief including:

1. An Order declaring that Astra:

   i. Engaged in unfair competition in violation of the Alaska Unfair Trade Practices Act by its unlawful distribution and sale of unapproved new drugs in violation of the Alaska Food, Drug, and Cosmetic Act;

   ii. Engaged in unfair trade practices in violation of the Colorado Consumer Protection Act by unlawful distribution and sale of unapproved new drugs in violation of Colo. Rev. Stat. § 12-280-131(1);

JURY DEMAND

28. Plaintiff Eli Lilly and Company hereby demands a trial by jury on all issues so triable.

Dated: August 31, 2026

Respectfully submitted,

/s/ James John Lomeo

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